MĀLĀ
SAIL CHARTERS

INTERNAL DOCUMENT · TEMPLATES & CHECKLISTS

# Compliance Pack

The documents, forms, checklists and registers behind a crewed small-group sailing operation — vessel, crew, guests, hosts, data and country licensing.

SEASON 2027 · VERSION 1.0

| | |
|---|---|
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| **Applies to** | All trips, all destinations, all hosts and crew |
| **Next review** | Before the first departure of the 2027 season, and annually thereafter |
| **Classification** | Internal. Contains templates — not for publication as-is. |

Read this first

# How to use this pack

## This is a working toolkit, not legal advice

Everything in this pack is a **template, checklist or register**. It is written to be practical and to reflect how small commercial sailing operations are usually run — but it is not legal advice and it does not replace the rules that actually bind you.

- The **flag state** of the vessel decides which licence, coding, crewing and equipment rules apply.
- The **coastal state** where you sail decides whether you may charter there at all.
- Your **insurer** decides what is covered — and a licence that does not match the charter you are selling is the fastest way to void a policy.
- Have the guest-facing documents (Section 2 and 3) reviewed by a lawyer qualified in Spanish consumer law before you use them with paying guests.

## Three rules for using the pack

1. **Fill the blanks.** Anything in square brackets — *[legal name], [NIF], [registered address]* — is a placeholder you must complete.
2. **Keep the signed originals.** A waiver that exists but was never signed is worth nothing. Store signed copies with the trip file (Section 9).
3. **Verify locally, every season.** Country rules in Section 8 change. Confirm them with the local maritime authority or charter agent before the first departure each year.

**Priority action before the 2027 season.** The Privacy Policy on the website still carries a note that the business is not yet registered, and there is no legal name, NIF or registered address anywhere in the published documents. Until that is fixed, the booking terms, the privacy policy and every invoice are incomplete. This is action number one in Section 1.

Contents

# What is in this pack


01 Operating model & who is responsible
Choose the capacity you sell in — operator, organiser or retailer — and the paperwork follows

02 Customer-facing documents
Terms, privacy, cookies, cancellation, complaints — and the gaps to close

03 Pre-contract & onboarding forms
Booking form, health declaration, risk acknowledgement, media consent, minors

04 Safety management
Safety briefing, emergency action plan, risk assessment, incident reporting

05 Vessel compliance
Documents aboard, insurance, MARPOL and environmental duties, servicing intervals

06 Crew compliance
Captain's credential file, STCW, medicals, employment status

07 Hosts, facilitators & creators
Host agreement, creator agreement, advertising disclosure, code of conduct

08 Country-by-country checklists
Spain, Greece, Italy, Portugal, Antigua & Barbuda, Mauritius, Thailand

09 Registers, calendar & document control
Renewal calendar, document register, trip file contents, annual review

10 Authority & adviser directory
Who to call, and the contacts to fill in yourself

Section 01

# Operating model & who is responsible

Before a single form is signed, decide in which capacity the trip is sold. The licence, the insurance and the liability follow the capacity — not the brand on the website.

## 1.1 The three ways a trip can be sold

| MODEL | WHO CONTRACTS WITH THE GUEST | VESSEL, FLAG & LICENCE | INSURANCE THAT RESPONDS |
|---|---|---|---|
| **A. Operator** | We do — we are the carrier and the organiser. | The vessel must be **commercially registered and licensed** in its flag state for charter work. | Commercial charter insurance in our name: hull & machinery plus P&I. |
| **B. Organiser with a local operator** | We do, but the boat and crew come from a licensed local charter company. | Their vessel, their flag, their charter licence. We must be named as an authorised reseller or intermediary. | Theirs responds on board; ours responds for our own organising activity. |
| **C. Retailer / seat on a licensed boat** | The licensed operator (for example, a cabin charter out of Phuket). | Theirs entirely. | Theirs. We hold professional indemnity and public liability for our own advice and marketing. |

**Why this page matters most.** The moment you market and sell a trip *as a package in your own name*, EU consumer law (the Package Travel Directive, 2015/2302) can treat you as the **organiser** — with information duties and an insolvency-protection obligation. If you only introduce a guest to a licensed operator, say so clearly, everywhere, or you risk being treated as the organiser anyway.

## 1.2 Decide and record, before the season

- ☐ Choose the model (A, B or C) for each trip and write it in the trip file.
- ☐ Agree who issues the guest's invoice, in which currency and from which entity.
- ☐ Confirm whose insurance responds if a guest is injured on board.
- ☐ Confirm who is the data controller for the guest's booking data.
- ☐ Confirm who holds the charter licence for the country of operation.
- ☐ Confirm who is liable if the trip is cancelled at the last minute.

## 1.3 Business registration & tax

| ITEM | WHAT TO DO | STATUS |
|---|---|---|
| **Legal entity** | Register as *autónomo* or a company (SL). Record the legal name, NIF and registered address. | [ to do ] |
| **Activity codes** | Register the charter/brokerage activity with Hacienda (IAE epígrafe) and with Seguridad Social. | [ to do ] |
| **Invoicing** | Issue compliant invoices: legal name, NIF, address, invoice number, date, description, VAT treatment, currency. | [ to do ] |
| **VAT — place of supply** | Short-term hire of a pleasure boat is normally taxed where the boat is put at the guest's disposal. Cross-border trips need an accountant's view, not a guess. | [ ask accountant ] |
| **Travel-agent margin scheme** | If we sell a package trip in our own name using third-party suppliers, the EU margin scheme (TOMS) may apply. Confirm before invoicing. | [ ask accountant ] |
| **Tourist taxes** | Some regions (for example the Balearics) levy a sustainable-tourism tax per night. Budget it and state who pays. | [ verify ] |

## 1.4 Consumer law: is it a package?

A charter on its own is usually a single travel service. It becomes a **package** when two or more different travel services are combined for the same trip — for example the charter plus flights, plus a hotel night, plus a transfer, sold together or billed together.

- ☐ If we sell only the charter and the guest books their own flights, record that decision in writing.
- ☐ If we arrange anything else as well, assume the package rules apply and provide the standard information form before booking.
- ☐ If we take money for another supplier and pass it on, check the "linked travel arrangement" rules.
- ☐ Note that the 14-day right of withdrawal does **not** apply to leisure services on a specific date — a charter is one. Say so in the terms so nobody asks for it.

Section 02

# Customer-facing documents

These are the documents a guest sees. Two are already published on the website; both have gaps that must be closed before taking a paying booking.

## 2.1 Document register

| DOCUMENT | WHERE IT LIVES | GAPS TO CLOSE |
|---|---|---|
| **Terms & Conditions** | terms.html (published) | Carries the legal name, NIF and address; the insurance requirement and the cancellation tiers are stated. Still to add: whether the trip is a package, and the alternative-dispute-resolution route. |
| **Privacy Policy** | privacy.html (published) | Add the controller's legal name, NIF and address; extend retention to cover booking and accounting records (tax law requires several years); list the processors actually used; add the international-transfer safeguard. |
| **Cookie notice** | privacy.html, section 6 | Fine as a statement. If any advertising or analytics cookie is ever added, a consent banner becomes mandatory. |
| **Cancellation & refunds** | terms.html, section 3 | Align the tiers with how deposits are actually taken; state what happens when the guest's place is resold. |
| **Complaints & ADR** | terms.html, section 7 | Name the consumer arbitration body and the EU online dispute resolution route. |
| **Records of processing** | Internal (not published) | Keep a simple internal register: what data, why, legal basis, retention, who it is shared with. Required under GDPR Article 30 in most cases. |

## 2.2 Minimum content checklist for booking terms

- ☐ Trading name, legal name, NIF and address
- ☐ Description of the trip and what is included
- ☐ Total price, deposit and balance dates
- ☐ What is excluded (flights, alcohol, insurance, meals ashore)
- ☐ Cancellation tiers and who bears the loss
- ☐ Our right to cancel or change for weather or safety
- ☐ Insurance the guest must hold, at minimum
- ☐ Passport, visa and health requirements
- ☐ The skipper's authority on board, in writing
- ☐ Behaviour and early-termination rules
- ☐ Liability and its limits
- ☐ Force majeure
- ☐ Data protection and image rights
- ☐ Governing law and jurisdiction

- [ ] Complaints procedure and ADR route
- [ ] Package information form, if a package

> **Guest insurance — now in the terms.** Section 5.1 states the **minimum cover required** — medical, repatriation, cancellation, personal liability and, where water sports are offered, water-sports cover — as a condition of travel, and requires the guest to confirm the policy before departure.

Section 03

# Pre-contract & onboarding forms

Six forms. Two are checklists, four are templates with a signature block you can copy straight into a PDF or an e-signature tool.

| FORM | PURPOSE | WHEN |
|---|---|---|
| **Booking form / charter agreement** | Creates the contract: parties, dates, price, payment schedule, inclusions. | At booking |
| **Guest information form** | Practical data: identity, dietary needs, experience, emergency contact. | On confirmation |
| **Health & fitness declaration** | Flags conditions the skipper must know about; protects everyone's safety. | 60 days before |
| **Risk acknowledgement** | Records that the guest understood the inherent risks and accepted the skipper's authority. | Before departure |
| **Media consent** | Opt-in consent for photography and video, with the right to withdraw. | Before departure |
| **Parental consent** | Needed for any guest under 18 travelling without both guardians. | Before departure |

## 3.1 Guest information form

Full name (as in passport) _____

Nationality & date of birth _____

Passport number & expiry _____

Trip & dates _____

Email & mobile _____

Cabin preference _____

Dietary requirements / allergies _____

Sailing experience (none is fine) _____

Swimming ability _____

Travel insurance policy & cover _____

Emergency contact — name, relation, phone _____

Arrival flight / transfer details _____

## 3.2 Health & fitness declaration

To be completed by every guest. Answering "yes" does not automatically exclude anyone — it means the skipper must know before departure.

- ☐ Any condition affecting balance, mobility or consciousness
- ☐ Heart or respiratory condition
- ☐ Pregnancy
- ☐ Recent surgery or injury
- ☐ Prescription medication carried on board
- ☐ Severe allergy requiring medication
- ☐ Any condition affected by heat, sun or motion
- ☐ Anything else the skipper should know

*Declaration:* I confirm the information above is accurate and complete. I understand that sailing, swimming and water sports carry inherent risks and that I should consult a doctor if I am in any doubt about my fitness to take part.

GUEST NAME _____ SIGNATURE _____ DATE _____

## 3.3 Risk acknowledgement & liability agreement

Please read carefully before signing. This document does not exclude liability for death or personal injury caused by negligence, or for anything that cannot lawfully be excluded — but it records that you understood the risks and accepted the rules of the vessel.

1. I understand that sailing, swimming, snorkelling, use of the tender and use of water toys are activities with inherent risk, including the risk of injury or, in extreme circumstances, death.
2. I confirm that I can swim and that I will wear a lifejacket whenever the skipper asks me to.
3. I agree to follow the skipper's instructions at all times. The skipper is the sole final authority on board on all matters of safety, route and weather.
4. I understand that the itinerary may change at any time for weather, safety or technical reasons, and that no refund arises from such a change.
5. I confirm that I hold travel and medical insurance covering this trip, including medical treatment and repatriation.
6. I understand that the skipper may end my participation, without refund, if my behaviour endangers the vessel, the crew, other guests or me.
7. I understand that alcohol and any substance may impair my judgement on and around the water, and I accept responsibility for my own consumption.

GUEST NAME _____ SIGNATURE _____ DATE _____

## 3.4 Media consent

Photographs and video are taken during the week, both by us and by other guests. Please choose one option and sign below.

- ☐ **Yes** — you may use photographs or video in which I appear on the Mālā Sail Charters website, social media and printed material, with no time limit.
- ☐ **Yes, but not my face** — you may use images where I am not identifiable.
- ☐ **No** — please do not use images in which I appear. I will step out of group shots.

I understand I may withdraw this consent at any time by writing to info@malasailcharters.com, and that images already printed may not be recoverable.

GUEST NAME | SIGNATURE | DATE

## 3.5 Parental consent (guests under 18)

Minor's full name & date of birth

Accompanying adult

Parent / guardian name & contact

Relationship

I authorise my child to take part in the charter, including supervised swimming, snorkelling and use of the tender, and I confirm they can swim.

PARENT / GUARDIAN SIGNATURE | DATE

Section 04

# Safety management

The documents that keep a week safe and, if anything goes wrong, keep the record straight. Print the briefing sheet and risk assessment for every departure.

## 4.1 Pre-departure safety briefing — checklist

- ☐ Lifejacket location, sizes and how to fit one
- ☐ Safety harnesses and jackstays
- ☐ Liferaft location and launching
- ☐ Flares and their storage
- ☐ Fire extinguishers, blanket and engine shut-off
- ☐ Gas system: shut-off and detector
- ☐ Bilge pumps and alarms
- ☐ First-aid kit and medical supplies
- ☐ VHF radio, distress button and how to call Mayday
- ☐ EPIRB / PLB location
- ☐ Man-overboard procedure and throwing line
- ☐ Abandon-ship procedure and muster point
- ☐ Below-decks hazards: hatches, steps, hot surfaces
- ☐ Rules on board: alcohol, smoking, sun, hydration
- ☐ Tender use and boarding rules
- ☐ Swimming and snorkelling rules and buddy system
- ☐ Waste, water use and marine-park rules
- ☐ Emergency contacts and the daily plan

*Briefed by:* _____ *Date:* _____ *All guests present:* _____

## 4.2 Emergency action plan — quick cards

| SCENARIO | IMMEDIATE ACTIONS |
|---|---|
| **Man overboard** | Shout "man overboard", throw flotation, press MOB on the plotter, assign a spotter who does not lose sight, bring the boat back under engine, recover on the leeward side, treat for hypothermia, call Mayday if not recovered fast. |
| **Fire** | Raise the alarm, cut the fuel and gas, fight only small fires with the correct extinguisher, move guests upwind and to the foredeck, prepare to abandon ship, Mayday. |
| **Medical emergency** | First aid, call Mayday or the coastguard for medical advice, identify the nearest hospital and the fastest route, keep the guest's declaration and medication list with them. |
| **Abandon ship** | Mayday with position, lifejackets on, grab bag and water, launch the liferaft, board from the leeward side, stay tethered to the raft, do not swim away from the vessel. |
| **Severe weather** | Reef early, brief guests, secure loose gear, lifejackets on, decide whether to run for shelter or heave to, monitor forecasts continuously. |
| **Flooding** | Locate the source, use the bilge pumps and manual pump, plug what can be plugged, Mayday, head for the nearest safe haven. |
| **Collision / grounding** | Check all persons, sound the alarm, assess hull damage, notify the coastguard, do not continue if the integrity of the hull is in doubt. |
| **Security / piracy** | Follow the flag-state and local guidance, do not resist, alert the authorities, keep guests below and calm. |

## 4.3 Risk assessment register

| ACTIVITY | HAZARD | CONTROL | REVIEWED BY |
|---|---|---|---|
| **Swimming from the boat** | Drowning, currents, boat drifting | Engine off and in neutral, ladder down, buddy system, headcount before and after, swim line, skipper on watch, no swimming at night or offshore without a line. | Skipper |
| **Snorkelling** | Drowning, boat traffic, sun exposure | Buddy pairs, high-visibility buoy, stay within sight of the boat, no diving alone, briefing on breathing and equalising. | Skipper |
| **Tender / dinghy** | Capsize, propeller strike, falling overboard | Lifejackets, kill cord attached, nobody on the tube while moving, load within limit, one hand for the boat. | Skipper |
| **Water toys** | Impact, entanglement, fatigue | Briefing, lifejackets, supervision, no towing near other swimmers, stop if conditions deteriorate. | Skipper |
| **Sun and heat** | Burns, heat exhaustion, dehydration | Shade, water always available, reef-safe sunscreen encouraged, schedules adapted to mid-day heat. | Skipper / host |
| **Alcohol** | Impaired judgement near water and machinery | Clear rule that guests do not operate any equipment while drinking; limit intake near water; the skipper does not drink while in charge. | Skipper |
| **Guests below decks under way** | Falls, seasickness, injury in rough conditions | Briefing to stay seated in the saloon, hatches secured, grab rails used, the skipper warns before manoeuvres. | Skipper |
| **Excursions ashore** | Injury, missed departure, local risks | Agreed return time, contact numbers, local advice on currents and wildlife, no solo trips. | Host / skipper |

## 4.4 Daily operational checklist

- [ ] Weather forecast checked and logged
- [ ] Engine oil, coolant and belts checked
- [ ] Bilges checked and dry
- [ ] Rig, sails and lines inspected
- [ ] Gas system and detector
- [ ] Fresh water and fuel levels
- [ ] Guest headcount on departure and arrival
- [ ] Position and float plan shared ashore
- [ ] Waste sorted and stored
- [ ] Anchor watch or mooring checked overnight

## 4.5 Incident and near-miss report

Record every incident **and every near miss**, however small. Near misses are the cheapest safety data you will ever get. Retain for at least five years.

Date, time and position _____

Trip and vessel _____

People involved _____

What happened _____

Immediate action taken _____

Injuries / damage / authorities notified _____

Root cause and follow-up _____

| REPORTED BY | SIGNATURE | DATE |
|---|---|---|
| _____ | _____ | _____ |

Section 05

# Vessel compliance

The papers the vessel must carry, the insurance that must respond, and the environmental duties that apply whenever the boat is at sea.

## 5.1 Documents carried aboard

| DOCUMENT | WHY IT MATTERS | EXPIRY |
|---|---|---|
| **Certificate of registry** | Proves flag and ownership. Must match the name on the insurance. | [ ] |
| **Commercial charter licence** | Without it, chartering for reward is unlawful in most coastal states. | [ ] |
| **Certificate of seaworthiness / coding certificate** | Confirms the boat meets the equipment and stability standard for commercial use. | [ ] |
| **Tonnage certificate** | Sets the manning and equipment tier that applies. | [ ] |
| **Ship radio licence** | Licences the VHF/DSC and the MMSI. | [ ] |
| **Operator's radio certificate** | SRC or GOC, held by the person on watch. | [ ] |
| **Insurance certificate (H&M and P&I)** | Ports and marinas ask for it. So does the coastguard. | [ ] |
| **LSA and FFE servicing certificates** | Liferaft, extinguishers, EPIRB battery, flares. | [ ] |
| **Crew list and crew licences** | Required on most commercial passages. | [ ] |
| **Charter agreement / booking contract** | Shows the boat is on charter, not private. | [ ] |
| **Transit log / cruising permit** | Where the coastal state requires one (Greece, Thailand and others). | [ ] |
| **Stability booklet and safety plan** | Required at higher coding tiers; good practice always. | [ ] |

## 5.2 Insurance — what the policy must actually cover

- [ ] **Hull & machinery** — the vessel itself, including tender and toys.
- [ ] **P&I / third-party liability** — injury to guests and crew, and damage to others.
- [ ] **Commercial charter use** explicitly named. A private policy will not respond.
- [ ] **Geographic limits** — confirm every sea area you sail in is inside the cruising range.
- [ ] **Crew cover** — including the skipper and any paid host.
- [ ] **Water sports and tender liability**, if you offer them.

- [ ] **Professional indemnity** for the organising and marketing side of the business.
- [ ] **Certificates for the flag** — a copy on board, in the language the port expects.

## 5.3 Environmental duties (MARPOL and local rules)

| ANNEX | WHAT IT COVERS | OUR PRACTICE |
|---|---|---|
| **I — Oil** | Discharge of oil and oily bilge water. | No discharge. Bilges checked daily; oily waste landed ashore. |
| **IV — Sewage** | Discharge of sewage, with stricter rules in some waters. | Use shore facilities and pump-out where available; respect local no-discharge zones. |
| **V — Garbage** | Disposal of all waste, including plastics. | Nothing over the side. Waste sorted on board and landed at port. Keep a garbage log. |
| **VI — Air** | Emissions, fuel sulphur, incineration. | Correct fuel for the area, no burning of waste, engine maintained. |
| **Antifouling & hull** | Invasive species and toxic coatings. | Appropriate antifouling; hull cleaned in a yard, not in the water. |
| **Marine protected areas** | Mooring and anchoring bans. | Check before every anchorage — for example Posidonia rules in the Balearics, marine parks in Antigua and national-park fees in Thailand. |

## 5.4 Servicing intervals (typical — confirm for your flag)

| ITEM | TYPICAL INTERVAL | RECORD KEPT |
|---|---|---|
| **Liferaft** | Annual service | Certificate on board |
| **Fire extinguishers** | Annual | Certificate on board |
| **Flares / pyrotechnics** | Replace at expiry (usually 3 years) | Expiry list |
| **EPIRB / PLB battery** | Per manufacturer (often 5 years) | Battery date |
| **Lifejackets** | Annual inspection | Checklist |
| **First-aid kit** | Before every departure | Daily checklist |
| **Gas system** | Annual, plus a bubble test each trip | Certificate and log |
| **Engine** | Per manufacturer hours | Maintenance log |

Section 06

# Crew compliance

One page that, if a port authority or an insurer asks, answers every question about who is in charge and why they are qualified to be.

## 6.1 Captain's credential file

| DOCUMENT | WHAT IT DEMONSTRATES | EXPIRY |
|---|---|---|
| **Commercial licence (Captain 200GT)** | Professional command of vessels up to 200 gross tonnes. | [ ] |
| **STCW certificate of competency** | The international standard for the certificate held. | [ ] |
| **STCW basic safety training (A-VI/1)** | Personal survival, fire fighting, elementary first aid, personal safety. | [ ] |
| **Medical fitness certificate** | ENG1 or the flag-state equivalent, in date. | [ ] |
| **GMDSS / radio operator certificate** | SRC or GOC, matching the equipment aboard. | [ ] |
| **First-aid certificate** | Beyond the STCW minimum; ideally current. | [ ] |
| **Passport, visa and seaman's book** | For crew on international passages. | [ ] |
| **Proof of sea service / logbook** | Supports licence renewals and upgrades. | [ ] |

> **Keep a digital copy of every certificate** in a folder you can reach from a phone. Ports, marinas and insurers ask for these at the least convenient moment, and a photograph of a valid certificate beats a PDF you cannot find.

## 6.2 Employment status

- [ ] Decide whether the skipper is self-employed or employed, and record it in writing.
- [ ] Confirm the social-security position for work performed in other countries.
- [ ] If a host or facilitator joins, decide whether they are **crew or a guest** — the answer changes insurance, liability and manning.
- [ ] Keep rest-hour records where the operation is a commercial, crewed one.

Section 07

# Hosts, facilitators & creators

The collaboration model — a free berth and a fee in exchange for bringing a group — creates three documents and one legal duty that most people forget.

## 7.1 Host / facilitator agreement — what it must state

| CLAUSE | CONTENT |
|---|---|
| **Parties & capacity** | Who the host is, and that they are a guest or an invited collaborator — not crew, and not our employee. |
| **Week & berth** | The exact dates, the boat, and that the host's berth is complimentary. |
| **Minimum group** | The number of paid guests the host must bring for the week to run, and what happens if they do not reach it. |
| **Host's fee** | That the host sets their own retail price for their guests and keeps 100% of the difference above our rate. Confirm in writing that we never touch it. |
| **Payments** | Who collects from the guests, when, and how the balance reaches us. |
| **Deliverables** | The content agreed — posts, reels, stories — and by when. |
| **Advertising disclosure** | The host must label paid or incentivised promotion clearly. See 7.3. |
| **Image rights** | What we may reuse, where, for how long, and with what credit. |
| **Conduct** | The code of conduct in 7.4 applies to the host as well as the guests. |
| **Cancellation** | What happens if the host, the guests or we cancel, and who keeps what. |
| **Insurance** | The host confirms their own travel and medical insurance. |
| **Data protection** | If the host collects guests' details, they are a controller for that data and must handle it lawfully. |
| **Governing law** | Which law applies and where disputes are heard. |

## 7.2 Creator / influencer collaboration — additional points

- [ ] State whether the berth is consideration for the content — if it is, the content is advertising.
- [ ] Agree the deliverables as numbers, not adjectives: two reels, five stories, one post.
- [ ] Agree when content may be published and for how long we may reuse it.
- [ ] Include a morality clause: content that damages the brand can end the agreement.
- [ ] Confirm the creator will not present themselves as our employee or agent.
- [ ] Confirm the audience is genuine — check for bought followers before agreeing value.

> **7.3 The duty everyone forgets: label the advertising.** A free berth given in exchange for promotion, or a payment, is **advertising**. Under the EU Unfair Commercial Practices Directive and Spain's advertising law, hidden advertising is an unfair practice — and the platform rules are stricter still. The host must use the platform's *paid partnership / branded content* label *and* a clear written disclosure (for example, "#ad" or "ad — free trip"), in a place a reader sees before they engage. Put this obligation in the agreement, and check it was done.

## 7.4 Code of conduct — hosts and guests

- Respect for crew, other guests, local people and the marine environment.
- No harassment, discrimination or aggression of any kind. Breach means removal at the next port, without refund.
- Follow the skipper's instructions on safety, always and without argument.
- Photography: respect the media-consent choices of others, and never film someone who has opted out.
- Alcohol in moderation, and never while operating any equipment.
- No illegal substances on board at any time.
- Leave every anchorage cleaner than you found it.

Section 08

# Country-by-country checklists

Chartering for reward is licensed by the coastal state. These are the items to verify locally, for the destinations on the 2027 calendar. Rules change — confirm each one with the local maritime authority or a local charter agent before the first departure.

**Read this before using any row below.** What follows is a working checklist of the categories that usually apply, not a statement of the current law of each country. In several of these jurisdictions a foreign-flagged yacht may not charter commercially at all without a local licence — which is why a licensed local operator is sometimes the only route.

## Spain — Mediterranean and Balearics

| | |
|---|---|
| **Licence to charter** | A commercially registered Spanish vessel needs an operating licence; a foreign-flagged vessel has its own conditions. Confirm with the Capitanía Marítima. |
| **Vessel registration** | Commercial register entry; the boat must match the listed use. |
| **Crew** | A professional qualification appropriate to the vessel and area; medical certificate in date. |
| **Taxes** | VAT on the charter in the applicable form; regional sustainable-tourism tax in the Balearics. |
| **Local rules** | Posidonia anchoring restrictions, marine reserves, and specific mooring rules in the Balearics. |
| **Verify with** | Dirección General de la Marina Mercante / Capitanía Marítima; [ harbour master ] |

## Greece — Ionian

| | |
|---|---|
| **Licence to charter** | Professional charter requires a Greek charter licence and a properly registered professional yacht. With a foreign flag, confirm that chartering is permitted. |
| **Contract form** | A charter party in the standard form, filed with the port authority. |
| **Permits and logs** | Transit log / cruising permit; a copy aboard and produced on demand. |
| **Taxes** | The annual cruising tax on the vessel, plus VAT treatment of the charter. |
| **Local rules** | Port police clearances, and restrictions on anchoring in archaeological and protected zones. |
| **Verify with** | Hellenic Coast Guard / port authority; [ local charter agent ] |

## Italy — Amalfi coast and islands

| | |
|---|---|
| **Licence to charter** | Commercial charter of a pleasure vessel requires a charter licence and a registered charter vessel. Foreign-flagged vessels need their own authorisation. |
| **Contract form** | A written charter agreement; for foreign-flagged vessels a formal charter declaration handled through an agent. |
| **Crew** | Qualification appropriate to the vessel and cruising area. |
| **Taxes** | VAT on the charter according to the place of supply; possible local tourist taxes ashore. |
| **Local rules** | Marine protected areas and anchoring bans, particularly around the Amalfi coast and the islands. |
| **Verify with** | Capitaneria di Porto; [ local charter agent ] |

## Portugal — Algarve

| | |
|---|---|
| **Licence to charter** | Commercial recreational use requires a commercial registration and the relevant authorisation. |
| **Crew** | Appropriate professional qualification; medical certificate in date. |
| **Taxes** | VAT on the charter in the applicable form. |
| **Local rules** | Protected coastal and marine areas; seasonal anchoring restrictions. |
| **Verify with** | Direção-Geral de Recursos Naturais, Segurança e Serviços Marítimos (DGRM); [ harbour master ] |

## Antigua & Barbuda — Caribbean

| | |
|---|---|
| **Licence to charter** | A charter licence is required. Visiting yachts usually need a specific visiting-charter arrangement; confirm the current route. |
| **Permits and logs** | Clearance in and out, cruising permit, and any marine-park fees. |
| **Crew** | Appropriate qualification; the skipper is usually named on the documentation. |
| **Taxes** | Charter tax and tourism-related levies may apply. |
| **Local rules** | Marine park anchoring rules and buoy fees. |
| **Verify with** | Antigua & Barbuda Port Authority / Immigration; [ local agent ] |

## Mauritius — Indian Ocean

| | |
|---|---|
| **Licence to charter** | Chartering for reward requires a licence; confirm the vessel's eligibility and the local agent's role. |
| **Permits and logs** | Clearance procedures and any lagoon or marine-park permissions. |
| **Taxes** | VAT and any tourism levy on the charter. |
| **Local rules** | Lagoon and reef protection rules; restrictions around protected marine areas. |
| **Verify with** | Mauritius Ports Authority / Tourism Authority; [ local agent ] |

## Thailand — Phuket and the Andaman Sea

| | |
|---|---|
| **Licence to charter** | Commercial chartering is normally restricted to Thai-registered, licensed vessels. Sailing with a foreign-flagged yacht as a commercial charter is generally not permitted — which is why a licenced local operator with a Thai-registered fleet is the practical route. |
| **Contract form** | Handled by the licensed operator; the guest's contract must name the correct carrier. |
| **Permits and fees** | National-park fees, and clearance requirements for the areas visited. |
| **Local rules** | National marine parks, anchoring restrictions, and protected dive and snorkel sites. |
| **Verify with** | Marine Department / Thai charter operator; [ local agent ] |

> **Practical consequence for the 2027 season.** For Thailand, the compliant structure is *model C*: a licensed Thai operator holds the vessel, the licence and the insurance, and we sell alongside them. Make sure the guest's contract, invoice and insurance certificate name the right carrier — not us.

Section 09

# Registers, calendar & document control

Compliance is not a document — it is a document that is still in date. This is the page that keeps it that way.

## 9.1 Renewal calendar

| ITEM | RENEWED WITH | FREQUENCY | NEXT DUE |
|---|---|---|---|
| **Vessel insurance (H&M, P&I)** | Broker | Annual | [ date ] |
| **Charter licence** | Local authority | Annual | [ date ] |
| **Certificate of seaworthiness / coding** | Flag authority or surveyor | Annual to five-yearly | [ date ] |
| **Ship radio licence** | Telecoms authority | Annual | [ date ] |
| **Liferaft service** | Service station | Annual | [ date ] |
| **Fire extinguishers** | Service station | Annual | [ date ] |
| **Flares** | Chandler | At expiry | [ date ] |
| **EPIRB battery** | Service station | Per manufacturer | [ date ] |
| **Captain's medical certificate** | Approved doctor | Per validity | [ date ] |
| **STCW refresher / updating** | Training provider | Per requirement | [ date ] |
| **Privacy policy review** | Internal / adviser | Annual | [ date ] |
| **Terms review** | Adviser | Annual | [ date ] |

## 9.2 Document register — where the originals live

| DOCUMENT | ORIGINAL HELD | DIGITAL COPY |
|---|---|---|
| **Vessel certificates** | [ physical folder ] | [ cloud folder ] |
| **Captain's licences and medicals** | [ physical folder ] | [ cloud folder ] |
| **Insurance policies and certificates** | [ broker ] | [ cloud folder ] |
| **Signed guest forms** | [ trip file ] | [ cloud folder ] |
| **Host and creator agreements** | [ cloud folder ] | [ cloud folder ] |
| **Incident reports** | [ trip file ] | [ cloud folder ] |
| **Records of processing (GDPR)** | [ cloud folder ] | [ cloud folder ] |

## 9.3 Trip file — what travels with every departure

- [ ] Charter agreement and invoice for every guest
- [ ] Guest information forms
- [ ] Health declarations
- [ ] Signed risk acknowledgements
- [ ] Media consent choices
- [ ] Parental consent, where relevant
- [ ] Insurance confirmations for all guests
- [ ] Crew list and certificates
- [ ] Vessel documents and insurance certificate
- [ ] Completed safety briefing sheet
- [ ] Risk assessment for the planned activities
- [ ] Emergency contacts and float plan left ashore

## 9.4 Annual review

1. Re-check every country checklist in Section 8 against the seasons you are actually selling.
2. Confirm the insurance still matches the routes, the activities and the entity that contracts.
3. Update the privacy policy and the terms, and re-date them on the website.
4. Refresh the safety briefing with anything learned from the season's incidents and near misses.
5. Archive the previous season's trip files and incident reports.

Section 10

# Authority & adviser directory

The organisations that actually decide whether you may sail. Fill in your own contact at each one — the difference between a licence and a fine is usually a phone number.

| WHO | WHAT THEY DECIDE | OUR CONTACT |
|---|---|---|
| **Flag-state maritime authority** | Registration, coding, manning and equipment for the vessel. | [ fill in ] |
| **Spanish maritime authority (DGM / Capitanía)** | Operating licence and commercial registration in Spain. | [ fill in ] |
| **Insurance broker** | Cover, limits, geographic range and certificates. | [ fill in ] |
| **Accountant / tax adviser** | Registration, invoicing, VAT place of supply, margin scheme. | [ fill in ] |
| **Consumer-law lawyer** | Terms, waivers, package-travel exposure. | [ fill in ] |
| **Spanish data protection authority** | GDPR compliance. Agencia Española de Protección de Datos — www.aepd.es | AEPD |
| **Local charter agent** | Licences, permits and clearances in each destination country. | [ fill in per country ] |
| **Marine park authorities** | Anchoring, mooring and visitor fees in protected areas. | [ fill in per destination ] |
| **MCA (UK) — if applicable** | Coding and ENG1 medicals for UK-flagged operation. | [ if used ] |

## Contact

Mālā Sail Charters — [ legal name ] — [ NIF ] — [ registered address ]
info@malasailcharters.com · +34 678 092 34 · malasailcharters.com

**End of pack.** Templates and checklists only — not legal advice. Have the guest-facing documents in Sections 2 and 3 reviewed by a lawyer qualified in the jurisdictions you sell into, and confirm every licensing point in Section 8 with the authority named there. Nothing in this pack is a substitute for a valid charter licence, a valid insurance policy, or the rules of the flag and coastal states.